

- RAG Learning

2.5 Elections and Direct Democracy

Politics — AQA (7152) — Paper 2 (Government and Politics of the USA and Comparative Politics)

US elections are unusual in three respects: candidates are selected by **voters in primaries** rather than by parties, the President is chosen by an **Electoral College** rather than a national popular vote, and campaign spending is effectively **unlimited**. Direct democracy exists at state level only — there is no provision for a national referendum.

1. The Electoral College

How it works

- Each state has electors equal to its **House members + 2 senators**; DC has 3. Total **538**.
- A candidate needs an absolute majority of **270** to win.
- Almost all states allocate electors **winner-take-all**; Maine and Nebraska allocate partly by congressional district.
- If no candidate reaches 270, the House chooses the President, with **each state delegation casting one vote**.

Criticisms	Defences
Can elect a President who lost the popular vote — five times in total, twice since 2000 (2000, 2016)	Preserves federalism : the USA is a union of states, so the presidential election is a set of state contests
Over-represents small states , since every state gets two electors regardless of population — a vote in Wyoming carries several times the weight of one in California	Requires geographically broad support rather than concentration in dense urban areas

Distorts campaigning — almost all spending and visits go to a handful of swing states; voters in safe states are effectively ignored	Produces a clear, decisive result and localises disputes — a recount concerns one state (Florida 2000), not 150 million ballots nationwide
Faithless electors — theoretically possible, though never decisive and many states now bind electors	Reinforces the two-party system, discouraging fragmentation

Exam Tip: The best reform answers note the **practical obstacle**, not just the principle. Abolition requires a constitutional amendment ratified by three-quarters of states — including many the current system advantages, which would have to consent to their own disadvantage. The **National Popular Vote Interstate Compact** is an attempted workaround (states pledging electors to the national winner) but remains short of 270 and would face immediate legal challenge.

2. The nomination process

Primaries and caucuses

	Primary	Caucus
Format	State-run election, secret ballot	Party-run meeting; supporters gather, hear advocacy and publicly declare preference
Participation	Higher turnout	Much lower — demands time and commitment, so participants are more ideologically committed activists
Types	Closed (registered party members only), open (any registered voter), semi-closed	—

Most states now use primaries. Delegates won are pledged to a candidate at the **National Convention**, which formally confirms the nominee and adopts the party platform — though the outcome is almost always settled long beforehand.

The invisible primary

The period *before* formal voting, during which candidates build funding, endorsements, staff and name recognition. It effectively screens out those who cannot raise money, which advantages establishment candidates — though Trump in 2016 demonstrated that overwhelming media attention can substitute for both money and endorsements.

Iowa and New Hampshire

Their significance comes from **calendar position**, not delegate numbers: an early strong performance generates momentum, media coverage and donations. Both are demographically unrepresentative of the national party electorates, which is a standing criticism.

Exam Tip: The key analytical consequence of primaries: they **transferred candidate selection from party elites to voters**. That is more democratic, but it means parties *cannot control who runs under their label*. This single fact explains weak party discipline, the viability of outsider candidates, and much of American polarisation — connect it to 2.2 and 2.6.

3. Campaign finance

Vehicle	What it can do
Candidate committee	Raises and spends for the candidate, subject to contribution limits per donor
PAC	Raises money and donates <i>directly</i> to candidates, subject to strict limits on both receipts and donations

Super PAC	Raises and spends unlimited sums on independent advocacy — but may <i>not</i> donate to or coordinate with a campaign
501(c)(4)	"Social welfare" organisations that may spend on political advocacy without disclosing donors — "dark money"

The legal framework

- *Buckley v Valeo* (1976) — spending limits restrict protected speech; contribution limits may stand.
- ***Citizens United v FEC* (2010)** — independent political spending by corporations, unions and associations is protected First Amendment speech. Combined with the *SpeechNow* ruling, this created **Super PACs**.

Effect: a large increase in outside spending, and a shift of money away from candidate control towards Super PACs and dark-money groups, making it harder to trace who is funding political messaging.

Exam Tip: Note the **constitutional** obstacle to reform, which is the point most answers miss: because the Court has held spending restrictions to be speech restrictions, meaningful reform requires either a constitutional amendment or the Court reversing itself. Congress cannot simply legislate it — unlike the UK, which caps campaign spending by ordinary statute.

4. Congressional elections

- **House** — entire chamber every two years; **Senate** — one-third every two years.
- **Midterms** fall halfway through a presidential term. The President's party almost always loses seats: lower turnout favours the more motivated opposition, and the election functions as a referendum on an administration whose popularity has usually declined.
- **Coattails** — a popular presidential candidate can help their party's congressional candidates.
- **Incumbency advantage** — House re-election rates routinely exceed 90 per cent.

5. Direct democracy at state level

Device	How it works
Initiative	Citizens propose a law or state constitutional amendment by collecting signatures; it is then put to a popular vote
Referendum	A measure passed by the legislature is referred to voters for approval or rejection
Recall	Voters petition to remove an elected official before their term ends, then vote on it (California, 2003 and 2021)

There is no national referendum in the USA — the Constitution makes no provision for one. This is a frequent comparison point with the UK.

Assessment

- **For:** genuine citizen agenda-setting power that the federal system entirely lacks; has delivered change on cannabis, minimum wage and healthcare expansion where legislatures were blocked.
- **Against:** qualifying an initiative requires expensive professional signature-gathering, so the mechanism can amplify organised money rather than popular will; complex issues reduced to binary choices with no committee scrutiny or amendment; voters can approve spending commitments and tax limits simultaneously. **California's Proposition 13** constrained property tax revenue for decades while other initiatives mandated spending, contributing to recurring fiscal crises.

6. Reform proposals

Reform	Case for	Obstacle
National popular vote	Equal weight for every vote; ends swing-state distortion	Requires an amendment ratified by states the system advantages

Campaign finance limits	Reduces the role of money and dark money	Constitutionally foreclosed unless the Court reverses <i>Citizens United</i>
Independent redistricting commissions	Competitive districts would reduce primary dominance and polarisation	<i>Rucho</i> (2019) made partisan gerrymandering non-justiciable federally; reform depends on state constitutions and ballot initiatives
Reforming the primary calendar	Reduces the outsized influence of unrepresentative early states	Controlled by state parties and legislatures, not nationally

Key terms

Term	Definition
Electoral College	The body of 538 electors that formally chooses the President
Winner-take-all	All a state's electors go to the statewide winner
Swing state	A genuinely competitive state where campaigns concentrate resources
Primary / caucus	Voter election / party meeting to select a party's candidate
Invisible primary	The pre-voting period of fundraising, endorsements and name recognition
PAC / Super PAC	Committee donating directly (limited) / spending independently (unlimited)
Dark money	Political spending whose donors need not be disclosed
Incumbency advantage	The structural benefits of already holding office

Coattails	A popular presidential candidate boosting their party's congressional candidates
Initiative / recall	Citizen-proposed ballot measure / removal of an official before term's end

Essential examples

- **2000 and 2016** — Electoral College winners who lost the popular vote.
- **Florida 2000** — recount localised to one state; *Bush v Gore*.
- ***Citizens United* (2010)** — Super PACs; the surge in outside spending.
- **Trump 2016** — an outsider capturing a party nomination through primaries, outspent but dominating media coverage.
- **California Proposition 13** — direct democracy producing long-term fiscal constraint.
- **California recalls (2003, 2021)** — recall in practice.
- ***Rucho* (2019)** — gerrymandering left to the states.